



CHAPTER lxvii.

An Act to empower the London County Council A.D. 1924.
to rebuild Lambeth Bridge and to make street
improvements and other works in connection
therewith. [1st August 1924.]

WHEREAS it is expedient to confer upon the London County Council (hereinafter called "the Council") power to rebuild the bridge across the River Thames known as Lambeth Bridge and to make the street improvements and other works in connection therewith hereinafter described :

And whereas it is also expedient to confer upon the Council in connection with and for the purposes of the works by this Act authorised the powers hereinafter set forth :

And whereas the Council have caused to be deposited with the clerk of the peace for the county of London plans and sections describing the line and levels of the works by this Act authorised and the lands which may be taken for the purposes thereof and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands and such plans sections and book of reference are respectively referred to in this Act as the deposited plans sections and book of reference :

And whereas an estimate has been prepared by the Council as to the amount which they will require to expend on capital account for the purposes of this Act and such

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924. estimate amounts to six hundred and sixty-eight thousand pounds :

—
And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited for all purposes as the London County Council (Lambeth Bridge) Act 1924.

Incorporation of Acts and part of Act. 2. The Lands Clauses Acts and the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with and form part of this Act with the following exceptions and modification—

(a) Sections 127 and 133 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act :

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the seal of the Council and shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation. 3. In this Act unless the subject or context otherwise requires—

“ The Council ” means the London County Council ;

“ The Port Authority ” means the Port of London Authority ;

“ Street ” has the meaning assigned to that term in the Metropolis Management Acts 1855 to 1893 ;

“ The new bridge ” means the new bridge by this Act authorised ;

“ The improvement ” means the new bridge and approaches and the works connected therewith and the street improvements and the widenings by this Act authorised ;

Terms to which meanings are assigned by enactments A.D. 1924.
incorporated with this Act or which have therein
special meanings have in this Act and for the
purposes of this Act the same respective
meanings :

Provided that for the purposes of this Act the
expressions "the promoters of the undertaking" and
"the company" in the Lands Clauses Acts and the
Railways Clauses Consolidation Act 1845 shall be con-
strued to mean the Council and the expressions "the
railway" and "the centre of the railway" in the Railways
Clauses Consolidation Act 1845 shall be construed to
mean the improvement and any part of the improvement
respectively.

4. Subject to the provisions of this Act the Council
may close for traffic take down and remove the existing
bridge over the River Thames known as Lambeth Bridge
and in the line or situation and within the limits of
deviation shown on the deposited plans and according
to the levels shown on the deposited sections may make
and execute the works following (that is to say) :—

Power to
execute
works.

(a) A new bridge and approaches (in substitution for
the existing bridge and approaches) for vehicular
and pedestrian traffic across the River Thames
commencing in the city of Westminster at the
junction of Grosvenor Road with Horseferry
Road and terminating in the metropolitan
borough of Lambeth at a point in the Albert
Embankment one and a half chains or there-
abouts southward of the junction of the
centre line of Lambeth Bridge with the Albert
Embankment :

(b) A diversion of Lambeth Road commencing by
a junction with the Albert Embankment at a
point one and a half chains or thereabouts
southward of the junction of the centre line of
Lambeth Bridge with the Albert Embankment
and terminating by a junction with Lambeth
Road at a point two chains or thereabouts
eastward of the junction of the centre line of
High Street with Lambeth Road :

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924.

- (c) A widening of Lambeth Road on the southern side thereof between Norfolk Row and a point one chain or thereabouts westward thereof:
- (d) A widening of the Albert Embankment on the eastern side thereof between the junction of the diversion of Lambeth Road hereinbefore described with the Albert Embankment and a point five and a half chains or thereabouts southward of the junction of the centre line of Lambeth Bridge with the Albert Embankment:
- (e) A widening of the Albert Embankment and Lambeth Palace Road on the western side thereof between points respectively two and a half chains or thereabouts northward and four and a half chains or thereabouts southward of the junction of the centre line of Lambeth Bridge with the Albert Embankment.

Subsidiary
works.

5.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Council may for the purposes of and in connection with the improvement—

- (a) Stop up so much of Lambeth Road as lies between the Albert Embankment and a point one chain or thereabouts eastward of High Street:
- (b) Alter the level of so much of the Albert Embankment and Lambeth Palace Road as lies between points respectively three and a half chains or thereabouts northward and five and a half chains or thereabouts southward of the junction of the centre line of Lambeth Bridge with the Albert Embankment:
- (c) Break up widen divert or alter the line or level of and make new or alter existing junctions with Lambeth Road Albert Embankment Lambeth Palace Road and the footways on the western side of the roadway of the Albert Embankment in the metropolitan borough of Lambeth:
- (d) Stop up so much of the before-mentioned footways as may be interfered with by the construction of the new bridge and approaches:
- (e) Stop up remove or alter the steps situate near the north-western end of Lambeth Bridge and leading from Horseferry Road and Millbank to the River Thames;

(f) Alter remove and reconstruct in the manner shown on the deposited plans the following portions of the tramways of the Council (that is to say) :— A.D. 1924.
—

(i) So much of the tramway in the Albert Embankment and Lambeth Palace Road as lies between points respectively three and a half chains northward and five and a half chains southward or thereabouts of the point of intersection of the centre line of Lambeth Bridge and the centre line of the said tramway; and

(ii) So much of the tramway in the Albert Embankment and Lambeth Road as lies between the point hereinbefore described as the termination of the new bridge and approaches and a point seven chains or thereabouts north-eastward thereof.

(2) On the stopping up of the portion of Lambeth Road all rights of way over that portion shall be extinguished and the site and soil thereof shall vest in the Lambeth Borough Council and the said portion shall be maintained by that council as an open space.

(3) On the stopping up of the before-mentioned portion of the footways of the Albert Embankment and the steps situate near the north-western end of Lambeth Bridge as aforesaid all rights of way over the same respectively shall be extinguished and the site and soil thereof shall vest in the Council.

6. Notwithstanding anything in this Act or shown on the deposited plans and sections the new bridge shall be constructed so that the centre of the underside of the central arch thereof shall be not less than twenty-one feet above the level of Trinity high water and so that for a distance of fifteen feet on either side of the said centre the underside of the said central arch shall not be less than twenty feet and six inches above such level and so that the centre of the underside of each arch next to the said central arch shall not be less than sixteen feet and eight inches above such level. As to size of certain arches of bridge.

7. In making any of the works for or connected with the improvement the Council may subject to the provisions of this Act deviate to any extent from the Deviation from line and levels.

A.D. 1924. line thereof within the limits of deviation defined on the deposited plans and to any extent not exceeding six feet from the levels thereof defined on the deposited sections.

Power to alter sewers and drains.

8. The Council may raise lower divert alter remove arch over or fill up or otherwise interfere with all such sewers or drains or parts thereof as are in or near the streets to be interfered with for the purposes of the improvement as appear necessary for executing the purposes of this Act but so that no public sewer or drain (unless the same becomes unnecessary by reason of the purchase of the property entitled to the use thereof) shall be interfered with without another sewer or drain being made in lieu thereof equally serviceable and convenient and all new sewers and drains which may be constructed by the Council under the provisions of this section in substitution for existing sewers or drains shall when made and completed be under the same jurisdiction care management and direction as the existing sewers or drains.

Power to alter steps areas pipes &c. and execute protective works.

9. The Council within the limits of deviation defined on the deposited plans may for the purposes of and in connection with the improvement—

(a) Raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars cellar-flaps pavement lights gratings boundary walls railings fencings windows water-courses pipes or spouts belonging to any house or building and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the Council shall make reasonable compensation to any person who suffers damage by any such alteration;

(b) Execute any works and do any things necessary for the protection of any adjoining land or buildings and for the strengthening and supporting of any walls of such buildings.

Alteration of position of water gas and other pipes.

10. The Council may for the purposes of this Act upon the lands acquired by them under this Act and also in any street within the limits of deviation defined on the deposited plans raise sink or otherwise alter the

position of any watercourse and any main pipe or apparatus laid down or used for carrying a supply of water or water for hydraulic power or gas and also any pipe tube wire or apparatus laid down or placed for telegraphic or other purposes or for supplying electricity and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit and making reasonable compensation for any damage caused by any such alteration Provided that before the Council alter the position of any main pipe or apparatus laid down or placed or used as aforesaid they shall (except in cases of emergency) give to the company body or person to whom the same belongs notice of their intention to do so specifying the time at which they will begin to do so such notice to be given seven days at least before the commencement of the work for effecting such alteration and such work shall be done under the superintendence (at the expense of the Council) of the company body or person to whom such main pipe or apparatus belongs unless such company body or person refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the execution of such work and the Council shall execute such work to the reasonable satisfaction of such company body or person Provided also that the Council shall not cause any street to be lowered or raised nor the position of any water or gas main or other pipe to be altered so as to leave over such main or pipe in any part a covering of less than two feet where the covering now existing is not less than two feet unless the Council shall in such case protect such main or pipe from frost or injury by artificial covering to the satisfaction of the company body or person to whom the same belongs or more than six feet where the covering now existing does not exceed six feet or more than such existing covering where the same exceeds six feet unless the Council in such case provide special means of access to the same to the satisfaction of such company body or person Provided also that the Council shall not raise sink or otherwise alter the position of any pipe tube wire or apparatus laid down or placed for telegraphic or other purposes and belonging to the Postmaster-

A.D. 1924.

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924. General except in accordance with and subject to the provisions of the Telegraph Act 1878 Provided also that nothing in this section shall extend to prejudice or affect any of the provisions for the protection of any undertakers authorised to supply electrical energy contained in any special Act or any Provisional Order confirmed by Act of Parliament.

If any difference arises between the Council and any such company body or person touching the amount of any costs expenses or charges under the provisions of this Act to be paid by the Council to any such company body or person or touching any work matter or thing with reference to such mains or other pipes under such provisions to be done or executed by the Council or the mode of doing or executing the same such difference shall be settled by an engineer to be agreed upon by the Council and such company body or person or failing agreement by such engineer as shall on the application of the Council or such company body or person be named by the President of the Institution of Civil Engineers.

For
protection
of Post-
master-
General.

11. The Council shall in constructing the new bridge and approaches provide space in the footway thereof for the accommodation of telegraphic lines of the Postmaster-General consisting of not more than twelve steel pipes enclosing wires each of such pipes having an internal diameter of not less than three and a quarter inches with the necessary jointing boxes.

As to water
mains on
bridge.

12.—(1) The Council shall in constructing the new bridge make provision in such part or parts thereof as they shall determine and if having regard to the character of the structure of the bridge and to the accommodation available for other undertakers it shall be reasonably practicable so to do in the footway or footways over the new bridge but in such position therein as they shall determine for a main or mains of the Metropolitan Water Board (in this section referred to as "the board") having in all a carrying capacity equivalent to but not exceeding that of a pipe with an internal diameter of twenty-four inches and the board shall but subject to and in accordance with such terms and conditions either as to the payment of rent or other valuable consideration or otherwise as the Council may prescribe or as in case of difference may be

determined by arbitration under and in accordance with the provisions of the Arbitration Act 1889 be entitled during the construction of the said bridge to lay down in accordance with the reasonable directions of the Council a main or mains of the capacity aforesaid in the position or positions in which such provision shall have been so made for the same and thereafter subject to such directions as aforesaid to maintain renew and inspect any main or mains so laid down by them as aforesaid. (A.D. 1924.

(2) If any difference arises between the Council and the board as to whether it is practicable to provide such accommodation in the said footway or footways such difference shall be settled by an engineer to be agreed upon by the Council and the board or failing agreement by such engineer as shall on the application of the Council or the board be named by the President of the Institution of Civil Engineers.

(3) In any case where the Council shall temporarily stop up any carriageway or footway under the provisions of the section of this Act of which the marginal note is "Power to stop up ways temporarily" the Council shall afford reasonable access to the board for the purposes of inspecting repairing maintaining removing replacing or extending their works or apparatus in any such carriage-way or footway.

13. The Council shall in constructing the new bridge make provision in such part or parts thereof as they shall determine for two mains of the Gas Light and Coke Company (in this section referred to as "the gas company") each having an internal diameter of eighteen inches and the Council shall lay down such mains of the diameter aforesaid as shall be provided by the gas company during the construction of the said bridge in the position or positions in which such provision shall have been so made for the same and the gas company shall thereafter be entitled subject to the reasonable directions of the Council to maintain renew and inspect any main or mains so laid down by them as aforesaid. As to gas mains on bridge.

14. If within seven days after a notice under the section of this Act of which the marginal note is "Alteration of position of water gas and other pipes" has been served upon the Metropolitan Water Board or the London Owners of certain pipes may execute works.

[Ch. lxvii.] *London County* [14 & 15 Geo. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924. — Hydraulic Power Company or any gas company that board or company as the case may be so elect they shall themselves execute all such alterations to their mains and pipes as may be necessary for the purposes of this Act and the reasonable costs of executing such alterations shall be repaid to them by the Council. Provided that such alterations shall be carried out in accordance with the directions and to the reasonable satisfaction of the Council.

Alteration
of electric
lines.

15. If the Council widen or alter any street in which an electric line is laid under the powers of any Act or Order the owners of such line may make such alteration in the position of such line as may be reasonably necessary for the purposes of this Act subject to such provisions (so far as applicable) as apply in the case of altering such line under their existing powers and any costs reasonably incurred by the owners of such line in such alteration shall be defrayed by the Council.

Subsidiary
works
affecting
River
Thames.

16.—(1) Subject to the provisions of this Act the Council may in connection with and at or near any works to be executed or constructed under the powers of this Act construct place and maintain in the River Thames and the banks bed and foreshore thereof all such temporary and permanent piles fenders booms dolphins pontoons caissons stagings cofferdams embankments piers abutments wharves walls fences drains stairs buildings and other works and conveniences as they may deem expedient or necessary and may with the consent of the Port Authority close temporarily any opening or openings of Lambeth Bridge but for such period or periods only in each case as shall be requisite for the execution of the works by this Act authorised.

(2) The temporary works in the said river to be placed or executed under the provisions of this section shall be placed or executed to the reasonable satisfaction of the Port Authority so that the traffic on the said river shall not be interfered with more than may be absolutely necessary.

For pro-
tection of
Port of
London
Authority.

17. For the protection of the Port Authority the following provisions shall unless otherwise agreed have effect (that is to say) :—

(1) The demolition of the existing bridge known as Lambeth Bridge shall be carried out in such

manner as the Port Authority reasonably approve and the Council shall remove entirely from the River Thames and from the bed shores and banks thereof all temporary works erected or placed in the river or on over or under the bed shores or banks thereof in connection with such demolition and all materials resulting from such demolition and shall also take up and remove from the river and from the bed shores and banks thereof the piers and foundations of the existing bridge down to the depth of thirty-five feet below Trinity high water : A.D. 1924.
—

- (2) Subject to the provisions of the section of this Act of which the marginal note is "As to size of certain arches of bridge" all works (whether permanent or temporary and whether in connection with the demolition of the existing bridge or the construction of the new bridge or otherwise) to be constructed erected or placed under the powers of this Act in the River Thames or on over or under the bed shores or banks thereof shall be constructed in accordance with plans and longitudinal and cross sections to be reasonably approved in writing by the Port Authority under the hand of their secretary. All such temporary works shall be enclosed in floating booms which shall be placed in such positions as shall be defined upon plans to be submitted to and reasonably approved by the Port Authority :

Provided that if the Port Authority shall not within two months of the delivery of any such plans and sections express their disapproval thereof they shall be deemed to have approved thereof :

- (3) (a) During the progress of the works for the demolition of the existing bridge and the construction of works adjacent to the centre and intermediate openings of the new bridge and until such time as all temporary works have been removed a steam tug shall be provided by and at the expense of the Council which shall at all times during that period be in attendance at or near the site of the works

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924.

to render assistance to vessels and barges navigating the river in the vicinity;

(b) The owners and masters of vessels shall not be liable to make good any damage which may be caused to the temporary works except such as may arise from the wilful act or default of such owners or masters or their servants or agents :

- (4) In the demolition of the existing bridge and in the construction and subsequent maintenance and repair of the new bridge and any works in the river or on over or under the bed shores or banks thereof the traffic of the river shall not be interfered with except so far as may be absolutely necessary :
- (5) The works by this Act authorised when commenced shall be proceeded with and completed as soon as practicable and the Council shall upon completion of the new bridge remove any temporary works and materials for temporary works which may have been erected or placed in the River Thames or on over or under the bed shores or banks thereof by the Council in connection therewith. If the Council fail so to do after receipt of notice from the Port Authority the Port Authority may remove the same charging the Council with the expense of so doing and the Council shall forthwith repay to the Port Authority all expenses so incurred :
- (6) The Council shall during the progress of any works (whether temporary or permanent) by this Act authorised in the River Thames or on over or under the bed shores or banks thereof and during the subsequent repairs of any such works hang out and exhibit on or near to the said works and on the new bridge when completed every night from sunset to sunrise such lights (to be kept burning by and at the expense of the Council) and during every day such marks as shall be proper and sufficient for the navigation and safe guidance of vessels. The said lights and marks shall from time to time be altered by the Council in such manner and be of such kind and number and be so placed and

used as the Port Authority by writing under the hand of their secretary or other authorised officer shall approve or direct. If the Council fail so to exhibit and keep burning such lights and to exhibit such marks they shall for every such offence forfeit to the Port Authority twenty pounds: A.D. 1924.

- (7) Nothing in this Act shall authorise or empower the Council without the previous consent of the Port Authority to embank encroach upon or interfere with any part of the shores or banks of the River Thames except as is expressly authorised by this Act:
- (8) The Council shall not (except so far as shall be necessary in the construction of the works by this Act authorised) take any gravel soil or other material from the bed or shores of the River Thames without the previous consent of the Port Authority:
- (9) The span of the central arch of the new bridge shall be approximately 152 feet and the spans of each arch nearest to the central arch shall be approximately 146 feet and the spans of the two remaining arches shall be approximately 132 feet 8 inches such spans being measured respectively at right angles to the piers at the springings of each arch:
- (10) No part of the new bridge shall be constructed within a distance of 120 feet from any part of the existing Lambeth Pier:
- (11) The foundations of the piers of the new bridge and all or any of the works in connection therewith shall be constructed and maintained at such a level as to allow the bed of the River Thames adjacent to the said bridge to be dredged to a depth of thirty-five feet below the level of Trinity high water:
- (12) During the demolition of the existing bridge and the construction of the new bridge the Council shall make all proper provisions for preserving adequate access to the works draw docks cuts and backwaters of Doultons Limited and other riparian owners situate near or in

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924.

proximity to the existing bridge or the new bridge :

- (13) Before exercising the powers of this Act in respect of the stopping up or removal or obstruction of the free use and enjoyment of the free public steps referred to in paragraph (e) of the section of this Act whereof the marginal note is "Subsidiary works" the Council shall construct provide and maintain in proper repair free public steps of equal convenience and in such position as shall be reasonably approved by the Port Authority. Provided nevertheless that pending the construction of the permanent steps temporary steps may be substituted in such position as shall be reasonably approved by the Port Authority :
- (14) The Council shall if required by the Port Authority so to do construct provide and maintain in proper repair at the Lambeth end of the new bridge a flight of steps leading to the River Thames :
- (15) The Council shall bear and on demand pay the cost of any alterations to any moorings and mooring chains which in the opinion of the Port Authority may be rendered necessary or desirable by reason of the construction of any of the works by this Act authorised :
- (16) Notwithstanding anything in this Act or in the Acts incorporated herewith the compensation or consideration payable to the Port Authority by the Council in respect of the temporary works placed in the River Thames or on over or under the bed shores or banks thereof and any mains pipes cables wires or other work or apparatus which may with the consent of the Council be at any time carried across the said river by means of the new bridge other than such as may be placed or used without the Council being entitled to require any consideration therefor or as may be placed or used solely by the Council for the purposes of any of their undertakings or in pursuance of any of their powers and duties shall be assessed in accordance with the provisions of section 254 of the Port

of London (Consolidation) Act 1920 or any A.D. 1924.
statutory provision in lieu thereof for the time
being in force : —

- (17) Nothing in this Act or in any Act incorporated therewith shall authorise the Council in the construction of the works by this Act authorised or any of them or in the exercise of any powers of this Act to discharge or allow to escape either directly or indirectly into the River Thames or its tributaries any offensive injurious or solid matter in suspension or otherwise or to prejudice or affect in any manner the powers of the Port Authority under sections 226 to 239 (inclusive) of the Port of London (Consolidation) Act 1920 or entitle the Council to infringe any of the provisions of those sections or any requirements of the Port Authority thereunder :
- (18) Except as is expressly provided by this Act nothing in this Act shall extend to or be construed to extend to prejudice or derogate from the estates rights interests privileges liberties or franchises of the Port Authority or to prohibit defeat alter or diminish any power authority or jurisdiction which at the time of the passing of this Act the Port Authority did or might lawfully claim use or exercise under and by virtue of the Port of London (Consolidation) Act 1920 or any Act extending or amending that Act or otherwise :
- (19) If any difference shall arise between the Council and the Port Authority as to any matter or thing affecting the plans and longitudinal and cross sections hereinbefore referred to or the mode of constructing the said works or as to anything to be done or not to be done under this section or otherwise arising under this section such difference shall be referred to and determined by an arbitrator to be agreed on between the parties or failing agreement appointed by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924.

—
Power to
stop up
ways tem-
porarily.

18. Subject to the provisions of this Act the Council for the purposes and during the making of the improvement may in or upon the lands shown in connection therewith upon the deposited plans stop up or cause to be stopped up temporarily all or any part of any carriageway or footway which they shall think necessary for such purposes to be stopped up and may put or cause to be put up sufficient palisades hoardings bars posts and other erections and may construct temporary works for keeping any such carriageway or footway open for traffic and may make such orders for regulating the traffic as to them shall seem proper and they may remove and alter any drinking troughs lamp-posts and other erections upon the said lands. Provided that the Council shall afford reasonable access to all persons bona fide going to and returning from any house adjoining any such carriageway or footway.

Carriageway
footways
sewers and
other works.

19. Subject to the provisions of this Act the Council may cause such part of the improvement to be laid out for carriageway and such part thereof for footway as they may think proper and may within the limits of deviation shown on the deposited plans construct erect and provide such vaults cellars arches sewers drains subways refuges shrubberies and other works and conveniences as they may think proper for the purposes of the improvement.

Directing
how pave-
ment shall
be laid and
made.

20. The Council shall for the purposes of and in connection with the improvement in a substantial and workmanlike manner fill or cause to be filled in the vaults cellars and open places over which it may be necessary to new pave (except such as are capable of being used as cellars vaults or areas) with good sound hard brick or other rubbish to be well rammed down to prevent the ground from giving way and shall well and effectually pave the ground with a sufficient quantity of materials of proper quality and dimensions and shall in like manner erect and build any underground arches which they may think necessary and also relay and repair the streets which they may disturb or alter in carrying the purposes of this Act into execution. Provided that nothing herein contained shall extend to charge the Council with the liability or expense of repairing or making good such pavement or arches in future but when the same have been in the first instance

so paved relaid erected built and repaired as aforesaid A.D. 1924.
the same shall for ever thereafter be kept in repair by —
the authority in whom the management and repair of
the street are vested or by any other parties or persons
liable to repair the same.

21. The provisions of the London County Council Applying
(Subways) Act 1893 shall extend and apply to any subway provisions
to be constructed under the powers of this Act as well of London
during as after the construction thereof as if such subway County
had been included in the expression "subway" in the Council
first-mentioned Act and all byelaws for the time being (Subways)
in force thereunder shall extend and apply to such Act 1893.
subway Provided that for the purposes of the applica-
tion of the London County Council (Subways) Act 1893
to such subway the Metropolitan Water Board and the
London Hydraulic Power Company shall be deemed to
be water companies.

22.—(1) When the improvement or any part thereof Improve-
is completed a certificate thereof shall be issued under ment to
the seal of the Council and any copy of such certificate form public
certified under the hand of the clerk of the Council shall streets
in all proceedings and for all purposes be admissible Repair &c.
and received as evidence that such certificate has been
duly made and from the date of such certificate so much
of the improvement to which such certificate relates as
has been laid out as carriageway or footway shall form
part of the street and may be used by the public
accordingly.

(2) The new bridge to be constructed under the
powers of this Act and the carriageway and footways
thereon shall be and remain vested in the Council and
the maintenance repair paving cleansing and lighting
thereof shall be under the care management control and
jurisdiction of the Council.

(3) Subject to the provisions of this Act so much
of the land acquired by the Council for the improvement
as is thrown into and used for the carriageway or footway
of any street shall on the completion of the improvement
(subject to the enjoyment by the council of the metro-
politan borough in which the same is situate of all such
rights in such land as are usually enjoyed in respect of
a street by the road authority) be and remain vested in
the Council and the maintenance repair paving cleansing

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924. — and lighting of so much of the improvement (exclusive of the new bridge and the carriageway and footways thereon) as has been laid out as aforesaid shall be under the care management control and jurisdiction of the council of the metropolitan borough in which such improvement is situate in the same manner as other streets in such borough. Provided that the provisions of this section with reference to the repair of carriageway shall not apply to that part of any carriageway which under the provisions of the Tramways Act 1870 the Council are bound to keep in repair.

For pro-
tection of
West-
minster
Electric
Supply
Corporation
Limited.

23. The Council shall not in the execution of the works authorised by this Act or for any of the purposes thereof in any way obstruct damage alter the position of or otherwise interfere with the pipes works subway and other apparatus belonging to the Westminster Electric Supply Corporation Limited used or intended to be used by them for the purpose of obtaining dealing with or discharging condensing water and if during the execution of the works by this Act authorised there shall be any deposit of mud or other obstruction in the river in the vicinity of the said pipes works subway or apparatus which shall in any way be due to the Council's works the Council shall forthwith at their own expense remove such deposit or obstruction.

For pro-
tection of
London
Electric
Supply
Corporation
Limited.

24. The Council shall in constructing the new bridge make provision in such part or parts thereof as they shall determine for electric lines and main transmission lines of the London Electric Supply Corporation Limited (in this section referred to as "the company") by a conduit of a section of not less than six feet by one foot six inches or two conduits of a section of not less than three feet by one foot six inches each-and the company shall be entitled to lay in accordance with the reasonable directions of the Council electric lines and main transmission lines in the position or positions in which such provision shall have been so made for the same and thereafter subject to such directions as aforesaid to maintain renew and inspect any electric lines or main transmission lines so laid down by them as aforesaid.

The company shall pay to the Council (a) in respect of such provision and (b) in respect of the use of such conduit or conduits such amount or amounts as may be settled by agreement or in case of difference by an arbitrator to be agreed upon between the Council and

the company or failing agreement appointed by the President of the Surveyors' Institution subject to and in accordance with the provisions of the Arbitration Act 1889. A.D. 1924.
 —

25. The Council may sell or dispose of the materials of the existing Lambeth Bridge and all building and other materials of any houses and buildings acquired by them under the powers of this Act and all lamp-posts paving metalling and materials in under or upon any road street or other place altered by them for the purposes of this Act and any materials obtained in the alteration of or interference with any drain or sewer which are vested in the Council under the powers of this Act. Power to sell materials.

26. Except as otherwise expressly provided by this Act no person shall enter upon break up or interfere with the new bridge or the carriageway and footways over the same for the purpose of laying down any main pipe or wire or executing any work therein thereon or thereunder except with the consent of the Council in writing and in accordance with such terms and conditions either as to the payment of rent or other valuable consideration or otherwise as the Council may determine. If any difference shall arise between the Council and any such person as to the amount of any such rent or valuable consideration the same shall be determined by arbitration under and in accordance with the provisions of the Arbitration Act 1889. Provided that nothing in this section contained shall alter prejudice or affect any of the rights powers and authorities of the Postmaster-General under the provisions of the Telegraph Acts 1863 to 1922. No mains or pipes to be laid on new bridge except with consent of Council.

27. If the improvement is not completed within seven years from the passing of this Act then on the expiration of that period the powers of the Council under this Act for the execution of the improvement shall cease except so far as the same are then completed. Period for completion of improvement.

28. Subject to the provisions of this Act the Council may enter upon take and use any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the improvement or for providing space for the erection of houses and buildings adjoining or near to the improvement or for the purposes of recoupment or exchange or for other purposes of this Act. Power to Council to take lands.

A.D. 1924.

—
Purchase of
lands by
agreement.

29. In addition to the lands shown on the deposited plans and described in the deposited book of reference the Council may purchase by agreement any lands not exceeding in the whole one acre in connection with and for the purposes of the improvement or for providing substituted sites or facilities for any persons whose lands may be required by the Council for the said purposes.

Limitation
of time for
purchase of
lands.

30. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease on the thirtieth day of September nineteen hundred and twenty-seven.

Compensa-
tion in case
of recent
improve-
ments or
interests.

31. In settling any question of disputed compensation under this Act the arbitrator settling the same shall not award any sum of money in respect of any improvement alteration or building made or erected or in respect of any interest in the lands created after the sixth day of November nineteen hundred and twenty-three if in the opinion of the arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or erected or created (as the case may be) with a view to obtaining or increasing compensation under this Act.

Power to
certain
persons to
grant ease-
ments &c.

32. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable shall extend and apply to such easements rights and privileges.

Correction
of errors
in deposited
plans and
book of
reference.

33. If there is any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to a metropolitan police magistrate for the correction thereof and if it appears to the magistrate that the omission mis-statement or wrong description arose from mistake he shall certify the same accordingly and he shall in his

certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of London and shall be kept by such clerk of the peace with the other documents to which it relates and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Council may take the lands and execute the works in accordance with such certificate.

A.D. 1924.
—

34. The Council and their surveyors officers and workmen and any person duly authorised in writing under the hand of the clerk of the Council may at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into lands and buildings by this Act authorised to be taken and used as aforesaid for the purpose of surveying and valuing the same without being deemed trespassers and without being subject or liable to any fine penalty or punishment for entering or continuing upon any part of the said lands and buildings.

Power to
Council to
enter upon
property for
survey and
valuation.

35.—(1) Nothing in this Act contained and nothing done hereunder shall have the effect of depriving the Archbishop of Canterbury or other the owner for the time being of Lambeth Palace of any estate right title or interest in any property now vested in him or in any body or person on his behalf.

For pro-
tection of
Lambeth
Palace.

(2) Any works forming part of the improvement which may affect the amenities or otherwise of Lambeth Palace shall unless otherwise agreed in writing between the Archbishop of Canterbury and the Council be carried out in accordance with the plan dated the fourth day of July one thousand nine hundred and twenty-four which has been signed by Henry Thomas Alexander Dashwood on behalf of the Archbishop and by George William Humphreys on behalf of the Council.

36. Subject to the provisions of this Act the Council may sell and dispose of or cause to be sold and disposed of the ground rents to be reserved by the leases or agreed to be reserved by any agreements for leases of any lands acquired by them under this Act and not required for the purposes thereof and also the fee simple in reversion in such lands and in the houses erections or buildings thereon either altogether or in parcels by public auction

As to sale
of ground
rents.

[Ch. lxvii.] *London County* [14 & 15 GEO. 5.]
Council (Lambeth Bridge) Act, 1924.

A.D. 1924.

—

or by private contract for such price or prices or sum or sums of money as the Council think reasonable and subject to such stipulations and provisions for the enjoyment thereof and as to the nature of the buildings which are to be at all times erected and built thereon and also subject to such stipulations as to the title to be produced to the hereditaments to be sold as the Council think fit and as regards any stipulations or provisions which may be contained in any conveyance under this enactment the same may at all times thereafter be enforced by the Council for the benefit of the parties entitled to other property adjoining or held after the same title.

Council may
sell land
in first
instance
without
having
previously
granted a
lease
thereof.

37. Subject to the provisions of this Act the Council may if they think it expedient so to do sell and dispose of in the manner hereinbefore directed any lands acquired under the powers of this Act and not required for the purposes thereof without having previously granted or agreed to grant any lease thereof for such price or prices or sum or sums of money as the Council think reasonable and subject to such stipulations and provisions for the enjoyment thereof and as to the nature of the buildings which are to be at all times erected and built thereon and also subject to such stipulations as to the title to be produced to the hereditaments to be sold as the Council think fit.

Council may
exchange
lands.

38. The Council may exchange or otherwise dispose of any building or lands or any part thereof acquired by them under this Act and not required for the purposes thereof and may execute and do any deed act or thing requisite or proper for effectuating any such exchange or other disposition.

Receipt of
Council to
be effectual
discharge.

39. The receipt of the Council or of any person duly authorised by the Council for any purchase money rent or money payable to the Council by virtue of this Act shall be a sufficient and effectual discharge for the money in such receipt expressed or acknowledged to be received and the person to whom the receipt is given shall not afterwards be answerable or accountable for the misapplication or non-application of the money in such receipt expressed or acknowledged to be received.

Power to
Council to
make agree-
ments with
owners of
property
&c.

40. The Council may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands or property abutting on any portion of the improvement with respect to the sale by the Council to such

[14 & 15 GEO. 5.] *London County* [Ch. lxvii.]
Council (Lambeth Bridge) Act, 1924.

person of any lands or property (including any street or thoroughfare or any part of a street or thoroughfare appropriated by the Council under the powers of this Act and not required for the improvement) for such consideration as may be agreed upon between the Council and such person and the Council may accept as satisfaction of the whole or any part of such consideration the grant by such person of any lands or other property required by the Council for the purposes of this Act. A.D. 1924.

41. Subject to the provisions of this Act the Council and the Port Authority the council of the city of Westminster and the council of the metropolitan borough of Lambeth or any of them may enter into and carry into effect agreements with respect to the construction maintenance and use of the improvement or any part thereof. Power to Council to make agreements with Port Authority and others.

42. The Lambeth Bridge Act 1861 is hereby repealed. Repeal.

43. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

44. The Council may expend on capital account for the purposes of this Act such money as they may from time to time think fit not exceeding six hundred and sixty-eight thousand pounds and may borrow or otherwise provide the money required for those purposes in accordance with the provisions of the London County Council (Finance Consolidation) Act 1912. Money to be raised on capital account.

45. All costs and expenses of the Council in the execution of this Act (except so far as they may be otherwise provided for by this or any other Act) shall be defrayed as payments for general county purposes within the meaning of the Local Government Act 1888 and the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Council in like manner. As to payments under this Act.

Printed by EYRE and SPOTTISWOODE, LTD.,
 FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
 Acts of Parliament.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
 Adastral House, Kingsway, London, W.C. 2; 28, Abingdon Street, London, S.W. 1;
 York Street, Manchester; 1, St. Andrew's Crescent, Cardiff;
 or 120, George Street, Edinburgh;
 or through any Bookseller.

